

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/31/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004067

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: DAVID SOLOMON

vs.

DEFENDANT: CRISTINA ROSALES

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Trial was originally scheduled in Department E, Hon. Andrew Sweet presiding on November 4, 2025. Defense counsel answered the trial call. Plaintiff’s counsel failed to show. The Issue Conference was set for the day before trial, on November 3, 2025, and again Plaintiff failed to show. The case was summarily dismissed.

Plaintiff filed a motion to set aside the default on December 17, 2025, pursuant to Code of Civil Procedure §473(b). Plaintiff’s request was GRANTED. In the order granting Plaintiff’s request, entered on March 25, 2026, the court stated:

When a court grants relief based on an attorney’s affidavit of default, §473(b) requires the court to “direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” Those fees are recoverable by motion. CCP §1005. In addition, the court may impose a penalty up to \$1,000, direct the attorney to pay up to \$1,000 to the State Bar Client Security Fund, or grant “other relief as is appropriate.” (§473, subd. (c)(1).) (*Talbott*, 109 Cal.App.5th 983-984.)

Defendant now proceeds with the motion for fee recovery pursuant to CCP §473(b). The request is GRANTED in its entirety.

CCP § 473(b) provides that (...The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties...). The award of fees is certainly appropriate here, considering the circumstances.

1. Reasonable Rate

Defendant’s counsel Lydia Goldman is Senior Counsel with Koyama and Costello, located in Walnut Creek, California. She states in his declaration that he has been admitted to practice in California and has “almost 40 years of experience.” Her practice is limited to civil litigation, and she serves as house counsel for CSAA insurance.

The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo*, 79 Cal.App.4th 445-446.). “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, citing *Serrano v. Priest (Serrano III)* (1977) 20. Cal.3d 25, 49.)

Plaintiff, in his opposition, questions whether the requested compensable hourly rate of \$200 is reasonable.

The court has reviewed the declaration submitted by counsel and the court finds the hourly rate requested of \$200.00 per hour reasonable for contractually paid defense counsel, and also well below the reasonable compensable rates charged by Marin County attorneys with similar experience by fee paying clients.

Section 473(b) permits the recovery of “reasonable” fees. It does not require an award of the actual rates paid based on a negotiated corporate fee retainer. Ms. Goldman may reconsider whether she intends to ask for a reasonable market fee rate, if she decides to contest this tentative.

2. Hours Worked

A party who seeks attorney’s fees has the initial burden of “documenting the appropriate hours expended.” (*ComputerXpress Inc. v. Jackson*, (2001) Cal.App.4th 993, 1020.) Once a documented hour total has been submitted, the opposing party may make objections to the hours claimed.

The basis for calculating the lodestar “must be the actual hours counsel devoted to the case, less those resulting from ineffective or duplicative use of time.” (*Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395.)

Plaintiff, in his opposition, objections to the total of 18 hours of trial prep-time requested by Ms. Goldman. Here too, the objection is unreasonable.

Counsel for Defendant requests in her declaration recovery of 18 hours. The declaration is signed under penalty of perjury by an officer of the court, attesting to the time worked. The court has no reason to believe the statements in her declaration are untrue.

Counsel is awarded \$3,600 (\$200 per hour x 18 hours) in compensable attorney’s fees.

Counsel apparently is not requesting “fees on fees” for time devoted to drafting the fee motion.

3. Costs

Paragraph 3 of the Goldman Decl. request cost recovery of \$4,043.45. the request is granted.

The recovery of wages requested by Defendant Cristina Rosales are supported in the declaration supporting the fee request. The request of \$252.40 is reasonable and granted.

Defendant does not seek interest on the fees.

4. Fees and costs awarded

Fees and costs are awarded as follows:

Fees awarded

Lydia Goldman	\$3,600.00
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Total Fees	\$3,600.00
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Costs

Litigation	\$4,043.45
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Defendant's lost wages	\$252.40
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Grand Total	\$7,895.85
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Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/31/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005785

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOSE AVIGAIL GRAMAJO
ORDONEZ

vs.

DEFENDANT: GENERAL MOTORS LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff filed a Motion to Compel responses to a document request on February 18, 2026.

The court issued a list of proposed Discovery Facilitators on July 13, 2026.

Plaintiff filed “Written Rejection of Proposed Discovery Facilitator” on July 22, 2026.

Appearances are required for an update regarding which Discovery Facilitator has been selected..

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